

Interview **K.G. BALAKRISHNAN**

# "We are ready for a wider body for judi

Chief Justice of the Supreme Court K.G. Balakrishnan spoke to Special Correspondent SHAFI RAHMAN in an exclusive interview. Excerpts.

**Q. What are your priorities when it comes to judicial reforms?**

**A.** Our problem is in the numbers. Even then I feel the courts are still not accessible to all. For example, in Kerala 28 people per thousand go to court whereas in Chhattisgarh only four go to court. That doesn't mean people have no problems. But they are not coming to court either due to poverty, ignorance or lack of assistance from the lawyers. Also, if the judges in Delhi, Tamil Nadu and Kerala can dispose of 6,000 cases, others should also do the same. Some of the high courts dispose of 4,000 to 5000 cases, some only 1,800. This is worrying.

**Q. But the disposal rate of cases is very low.**

**A.** A positive and active role by all judges will have great impact in the disposal of cases. We have no other way to dispose of these cases. We tried mediation. We tried evening courts, morning courts in some states, Lok Adalats. These are all cosmetic changes. For a large disposal of cases, judges should strive more.

**Q. But can there be institutional mechanisms?**

**A.** Some of the judges do wonderfully well, put in hard work. But all the judges are not making the same effort. Now their salary and allowances have been hiked. In a poor country like India the judges are paid around Rs 1 lakh. Plus there is telephone, car

and other benefits. It is at the poor man's expense. The judges should put in some more effort.

**Q. What about frequent adjournments, lack of control over lawyers and benches being shifted?**

**A.** Financially powerful parties can engage the best lawyers. And under our system, lawyers can also be used to file various types of petitions to delay cases for years. Several high courts are not telling the state how many courts they require. Now we are trying to deal with the problem at the national level. Earlier, nobody thought of approaching the Planning Commission. Now we want money to be allocated to the judiciary. There is not much dearth of resources. It has to be streamlined. In India, litigation fee is very low. Cheap

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in the sense that powerful litigants come to the Supreme Court, but the court fee they pay is a mere pittance compared to the time consumed by the apex court. So many things are challenged in the Supreme Court. Powerful commercial litigants should be properly taxed. They engage top lawyers and pay them lavishly. When the court fee is raised, lawyers raise objections, not the litigants. They think it will eat into their fees.

**Q. There are around 3,000 vacancies for judges to be filled up.**

RAVISH SAHANI



**Why the backlog?**

**A.** There is a problem in that. In Uttar Pradesh there are 100 vacancies. To fill up those vacancies, we will have to hold a written test, interview and then the selected candidates will go for training. So it will take one to one-and-a-half years to complete the recruitment process. By that time, another 100 vacancies will come up.

**Q. Much of the litigations are due to some government or official not taking an impartial decision.**

**A.** We shall not discourage the government litigation. But the higher authorities of government departments should take a decision if a case is to be filed or not.

**Q. How can the issue of corruption in the judiciary be addressed?**

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